

Court No. - 21

Case :- WRIT - C No. - 14320 of 2014

Petitioner :- Rais Ahmad

Respondent :- U.P. Power Corporation Ltd. And 2 Others

Counsel for Petitioner :- Kshitij Shailendra

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Vivek Kumar Birla,J.

Heard learned counsel for the petitioner and Sri Pawan Kumar Mishra holding brief of Sri Pranjal Mehrotra for the respondent - Electricity Department.

The grievance of the petitioner is that the bill of minimum charges has been raised erroneously keeping in view the provisions of Clause 4.35 read with Clause 4.37, 4.38, 4.39 of the Electricity Supply Code, 2005.

Learned counsel submits that such minimum charges for five years which is sought to be realized is in violation of the Code and therefore order passed by the Executive Engineer is erroneous.

Learned counsel for the Corporation has invited the attention of the Court to Clause 7 onwards of the 2005 Code to submit that a consumer grievance redressal forum is provided for under Clause 7.10 and therefore the petitioner should approach the said forum for the redressal of his grievances whereafter any further grievance can be raised before the Ombudsman.

In view of the aforesaid provisions available to the petitioner, we are not inclined to entertain this petition. In the event the petitioner files his grievance before the forum within 15 days from today the same shall be disposed of within six weeks thereafter.

The writ petition is disposed of with the said observation.

Order Date :- 7.3.2014

Sahu